

Tentative Rulings for September 18, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

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CASE #	CASE NAME	HEARING NAME
CVRI2405136	DIAZ VS GUTIERREZ	MOTION TO ENFORCE SETTLEMENT

Tentative Ruling:

Hearing is vacated as moot. On 6/11/26, Plaintiffs filed with the court a Request for Dismissal the entire action.

As a matter of fundamental California civil procedure, a voluntary dismissal of an entire action deprives the court of both subject matter and personal jurisdiction.

Under the well-settled holdings in *Sanabria v. Embrey* (2001) 92 Cal. App. 4th 422, and *Paniagua v. Orange County Fire Auth* (2007) 149 Cal. App. 4th 83, once a plaintiff files a voluntary dismissal, the court's power to govern the dispute is extinguished.

Consequently, any subsequent orders issued by the court following such a dismissal are not merely erroneous, but are void for lack of subject matter jurisdiction. This loss of authority is absolute and effective immediately upon the tender of the dismissal to the clerk. A voluntary dismissal is effectively treated as a "judgment" for purposes of starting the post-dismissal time window to file a motion for attorney fees. *Sanabria v. Embrey*, supra.

Strictly speaking, once the dismissal is effective, the court is stripped of jurisdiction to take any action other than addressing specific ancillary issues, such as attorney fees and costs, or—critically—addressing the *validity* of the dismissal itself.